

Form No:HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Crl. Misc. No.259/B/2020

Mst. Nasreen Bibi Vs. The State etc.		
S.No.of order/ Proceeding	Date of order/ Proceeding	Order with signature of judge, and that of parties or counsel, where necessary.

28.01.2020

**Mr. Muhammad Ali Khan Baloch, Advocate for
petitioner.**

Malik Mudassir Ali, DPG.

Abdul Aleem SI with record.

Through this petition, the petitioner seeks post-arrest bail in case FIR No.43/2020 dated 14.01.2020 registered u/s 9(c) of the Control of Narcotic Substances Act, 1997 at P.S. Multan Cantt., Multan.

2. The brief allegation against the petitioner as per contents of FIR is that on 13.01.2020 at about 11:50 p.m., she was apprehended by the local police on suspicion and Chars weighing 1400-gms, wrapped in a shopper bag, was recovered from her possession.

3. Heard. Record perused.

4. The crux of arguments of learned counsel for the petitioner is that an infant aged about 2 ½ months is being detained in the jail along with the petitioner (the mother) and this factum was confirmed from the police file vide zimni No.1 dated 14.01.2020. Welfare of suckling child so demands that child should not be made to suffer in jail for the offence allegedly committed by his/her mother. Reliance in this regard may be placed in the case of Mst. Nusrat vs. The State (1996 SCMR 973), wherein August Supreme Court has observed

that concept of "welfare of minor" was incompatible with jail life. Instead of detaining the innocent child/infant in the jail for the crime allegedly committed by his mother, it was in the interest of justice as well as welfare of minor if the mother was released from jail. In another judgment rendered by this Court reported in case of Mst. Nasreen vs. State, (1998 MLD 1350), the bail was granted on the ground that a suckling child should not be made to suffer in jail. In another judgment passed by this Court in case of Mst. Zubaida Bibi vs. The State (PLD 2005 Lahore 352), it is held that as the baby could not be separated from her accused mother and the child should not be punished in any manner and presence of baby in jail would amount to punishment and under the circumstances the mother was admitted to bail. In a recent judgment passed by the Hon'ble Peshawar High Court in case of Mst. Nazima Bibi vs. The State and another (PLD 2018 Peshawar 138), the Hon'ble High Court while granting bail to mother observed that the accused/petitioner deserves to be released on bail on this score alone that she is also having a suckling baby with her in the jail premises. Furthermore, the grant of bail does not amount to acquittal of the accused as the custody of accused is shifted from jail lock-up to the hands of sureties, who are made responsible to produce the accused before the Court as and when required. Even otherwise, the investigation has already been completed and the report u/s 173 Cr.P.C. has been submitted before the learned Trial Court on 16.01.2020 and there is no progress in the trial. Even the prosecution has not received the report of Chemical Examiner confirming the fact that

contraband allegedly recovered from possession of the petitioner was in fact Chars. It is apprised to the Court that petitioner is previously not involved in any criminal case.

5. Under the circumstances, this petition is allowed, and the petitioner is admitted to post-arrest bail, subject to her furnishing bail bond in the sum of Rs.2,00,000/- (Rupees two lacs) with one surety in the like amount to the satisfaction of the learned Trial Court.

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(Muhammad Waheed Khan)
Judge

Approved for reporting

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Judge

Mumtaz

29/1/2021